

Smt. Bhawana Pant vs Rajesh Pant on 17 April, 2013

Author: B.S. Verma

Bench: B.S. Verma

IN THE HIGH COURT OF UTTARAKHAND AT NAINITAL

Civil Transfer Application (C24) No.7 of 2012

Smt. Bhawana Pant

..... Applicant

Versus

Rajesh Pant

..... Respondent

Hon'ble B.S. Verma, J. (Oral)

Ms. Janki Surya, Advocate for the applicant. Mr. Lalit Sharma, Advocate for the respondent.

Instant transfer application has been filed by the applicant/wife Smt. Bhawana Pant seeking transfer of Case No.217 of 2011 pending before the court of Principal Judge, Family Court, Nainital, u/s 9 of Hindu Marriage Act, 1955, to the court at Garur, District Bageshwar.

Ground urged in the transfer application is that applicant-wife is residing in Garur, District Bageshwar. Her husband has filed an application u/s 13 of the Hindu Marriage Act before the Family Court, Haldwani (Nainital) and she is unable to go to Haldwani to attend the court proceedings at Haldwani due to her ill health as well as financial crisis.

In the facts and circumstances of the case that applicant is a woman and is unable to go to Haldwani to attend the court at Haldwani due to her ill health as well as financial crisis, it would be difficult for her to travel from Tehsil Garur, District Bageshwar to attend the court proceedings at Nainital. On the other hand, the respondent husband will have no difficulty in attending the court at Bageshwar. I am fortified in my view by the judgment of the Supreme Court in the case of Sumita Singh vs. Kumar Sanjay and another, reported in AIR 2001 SC 396, wherein it has been held that wife's convenience must be looked at.

In view of the above, the civil transfer application is allowed. Case No.217 of 2011, Rajesh Pant vs. Smt. Bhawana Pant, pending before the court of Principal Judge, Family Court, Haldwani (Nainital), u/s 9 of Hindu Marriage Act, is transferred to the Family Court at Bageshwar.

(B.S. Verma, J.) 17.04.2013 Rajni